

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #01	CCRB Case #: 201801859	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/07/2018 9:47 AM	Location of Incident: § 87(2)(b) and the 9th Precinct stationhouse.		18 Mo. SOL 9/7/2019		Precinct: 09
Date/Time CV Reported Wed, 03/07/2018 10:18 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 03/07/2018 10:18 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Nikola Simunovic	07067	949667	009 PCT
2. POM Kevin Seidita	17789	943803	009 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Tami Stromer	05539	948139	009 PCT
2. SGT James Keating	04284	932845	009 PCT
3. POM Bryan Rozanski	26377	948271	009 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Nikola Simunovic	Abuse of Authority: PO Nikola Simunovic did not obtain medical treatment for § 87(2)(b) at § 87(2)(b) and the 9th Precinct stationhouse.	A . Unsubstantiated
B . POM Kevin Seidita	Abuse of Authority: PO Kevin Seidita did not obtain medical treatment for § 87(2)(b) at § 87(2)(b) and the 9th Precinct stationhouse.	B . Unsubstantiated

Case Summary

On March 7, 2018, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On March 7, 2018, at approximately 9:47 AM, in the vicinity of § 87(2)(b) in Manhattan and the 9th Precinct stationhouse, PO Nikola Simunovic and PO Kevin Seidita of the 9th Precinct refused to obtain medical treatment to § 87(2)(b) (**Allegations A and B, Abuse of Authority: Unsubstantiated**). § 87(2)(b) was issued a desk appearance ticket for § 87(2)(b) during this incident. Video footage was obtained from surveillance cameras at § 87(2)(b) (Board Review 07 through 09).

Findings and Recommendations

Allegation (A) Abuse of Authority: PO Nikola Simunovic did not obtain medical treatment for § 87(2)(b) at § 87(2)(b) and the 9th Precinct stationhouse.

Allegation (B) Abuse of Authority: PO Kevin Seidita did not obtain medical treatment for § 87(2)(b) at § 87(2)(b) and the 9th Precinct stationhouse.

It is undisputed that § 87(2)(b) was involved in an altercation with her landlord, § 87(2)(b) in the lobby of her residence. § 87(2)(b) bit § 87(2)(b)'s hand during this fight. § 87(2)(b) had no visible injuries as a result of this fight. When officers responded, § 87(2)(b) was arrested as the primary aggressor due to § 87(2)(b)'s visible injury and taken to the 9th Precinct stationhouse, where she remained for approximately an hour, before being released with a DAT. § 87(2)(g)

§ 87(2)(b) stated that § 87(2)(b) punched and choked her before she § 87(2)(b) bit down on § 87(2)(b)'s finger (Board Review 01). § 87(2)(b) and § 87(2)(b) returned to their respective apartments and § 87(2)(b) called 911. § 87(2)(b) asked for police and an ambulance, then went to the lobby and waited for their arrival. A few minutes later, an ambulance and approximately six to seven officers arrived. PO Seidita and PO Simunovic guided her to a corner of the vestibule and remained with her. § 87(2)(b) told the officers that she called for an ambulance, and needed to go to the hospital. PO Simunovic told her "That's not important," and to calm down. EMTs entered the building with a stretcher and passed by § 87(2)(b). § 87(2)(b) stated again that she was the one who called the ambulance. § 87(2)(b) called a neighbor, § 87(2)(b) downstairs and § 87(2)(b) came downstairs and spoke to officers. § 87(2)(b) did not recall if she asked to go to the hospital in § 87(2)(b)'s presence. § 87(2)(b) left after a few minutes and PO Simunovic informed § 87(2)(b) that she was going to be placed under arrest for § 87(2)(b). § 87(2)(b) again stated she had to go to the hospital and that she had been hurt. PO Simunovic told her she was not going anywhere but with them (the officers). § 87(2)(b) asked if an officer could escort her upstairs so she could get medication she needed and PO Simunovic told her it was not important and refused.

§ 87(2)(b) was placed in handcuffs and escorted to the 9th Precinct stationhouse. She told PO Simunovic and PO Seidita that she wanted to go to the hospital at the front desk in the presence of Sgt. James Keating. She was handcuffed to a chair in a room by the front desk. She told PO Simunovic and PO Seidita that she needed to go to the hospital, that her head felt like it was splitting open, and that she could not see straight. PO Simunovic stated, "That's not important." § 87(2)(b) was released with a Desk appearance ticket. As she left the stationhouse, PO Seidita asked if she still needed an ambulance. § 87(2)(b) declined, stating she wanted to go home and

take her medication prior to going to the hospital. § 87(2)(b) estimated she was at the stationhouse for an hour and a half. § 87(2)(b) went home and then called an ambulance. An ambulance took her to § 87(2)(b). She was at the hospital for over an hour and treated for § 87(2)(b).

§ 87(2)(b) confirmed that she went downstairs and saw officers standing with § 87(2)(b) (Board Review 02). She did not recall hearing § 87(2)(b) ask officers for medical treatment and did not hear any officer remark, “That’s not important.”

§ 87(2)(b) son of § 87(2)(b) was only present at the end of the incident when § 87(2)(b) was being placed in the police SUV (Board Review 13). He stated that he heard her screaming but did not hear her state she needed an ambulance or wanted to go to the hospital.

PO Simunovic stated that he and PO Seidita responded to an assault in progress and met § 87(2)(b) by the staircase in the lobby (Board Review 03). § 87(2)(b) was upset but had no visible physical injury. PO Seidita went upstairs to speak to § 87(2)(b) while PO Simunovic remained downstairs with § 87(2)(b). § 87(2)(b) did not request an ambulance or state she needed to go to the hospital. She informed PO Simunovic that she and § 87(2)(b) had a dispute over birdseed and § 87(2)(b) pushed her into a corner and § 87(2)(b) bumped her head. § 87(2)(b) stated that she bit § 87(2)(b)'s finger and then called 911. EMS and Sgt. Tami Stromer arrived soon after. When EMS arrived, an EMT asked § 87(2)(b) if she was okay and she stated she was. PO Bryan Rozanski, Sgt. Stromer’s operator, remained in the lobby with PO Simunovic while the EMTs and Sgt. Stromer went upstairs to attend to § 87(2)(b). PO Simunovic estimated he remained in the lobby with § 87(2)(b) for approximately twenty minutes and she did not ask for medical attention. PO Simunovic did not recall § 87(2)(b) asking to go upstairs in order to take medication. However, PO Simunovic escorted her upstairs to her apartment so she could put away a bag of groceries. PO Simunovic did not recall if PO Rozanski was present when this occurred. Sgt. Stromer and PO Seidita came downstairs and instructed officers to arrest § 87(2)(b) due to § 87(2)(b)'s visible injury. PO Seidita and PO Simunovic escorted § 87(2)(b) to the 9th Precinct stationhouse. § 87(2)(b) did not complain of any injuries or request medical attention on the way to the stationhouse. PO Simunovic filled out the paperwork related to § 87(2)(b)'s DAT next to her in the juvenile holding area and remained there for the duration of her stay at the stationhouse. § 87(2)(b) did not ask for medical attention. PO Seidita and PO Simunovic spoke to § 87(2)(b) as she was leaving the stationhouse. She stated she needed medication and PO Simunovic offered to call an ambulance if she wanted to go to the hospital. She declined, stating she wanted to go home. PO Simunovic denied that he or any officer refused to obtain medical treatment for § 87(2)(b).

PO Seidita stated that when he and PO Simunovic entered the lobby, § 87(2)(b) told the officers that she was assaulted and her assailant was upstairs (Board Review 04). PO Seidita did not observe any physical injuries and § 87(2)(b) did not state that she had called an ambulance, needed an ambulance, or otherwise needed medical attention. PO Seidita went upstairs while PO Simunovic remained downstairs with § 87(2)(b). PO Seidita spoke with § 87(2)(b) and her son, § 87(2)(b). PO Seidita went downstairs and saw EMTs with § 87(2)(b) and PO Simunovic. PO Seidita told PO Simunovic to have EMTs come upstairs and treat § 87(2)(b) when they were finished. PO Seidita was approximately twenty feet away and could not hear the conversation between EMTs and § 87(2)(b). PO Seidita went back upstairs with the EMTs to treat § 87(2)(b)'s

injuries and wait for Sgt. Stromer. Sgt. Stromer came upstairs and after seeing § 87(2)(b)'s injury, determined that § 87(2)(b) was the primary aggressor. PO Seidita came back downstairs and observed § 87(2)(b) being placed in handcuffs by PO Simunovic. PO Seidita did not recall § 87(2)(b) stating she needed medication upstairs or being escorted upstairs by PO Simunovic at any point during the incident. PO Seidita denied § 87(2)(b) requested medical attention on the way to the 9th Precinct. § 87(2)(b) solely complained that she was the one assaulted yet she was being arrested. PO Simunovic asked § 87(2)(b) if she needed an ambulance at the stationhouse, but § 87(2)(b) stated she did not, only water. PO Simunovic and PO Seidita spoke to § 87(2)(b) as she left the stationhouse with the DAT but PO Seidita denied § 87(2)(b) asked for an ambulance or stated she needed to go to the hospital. He denied he or PO Simunovic refused to obtain medical treatment for § 87(2)(b) during this incident.

PO Rozanski stated he and Sgt. Stromer responded to the location at the request of the PO Simunovic and PO Seidita (Board Review 05). Sgt. Stromer went upstairs with PO Seidita when they arrived, while PO Rozanski remained in the building lobby with § 87(2)(b) and PO Simunovic. § 87(2)(b) told the officers that § 87(2)(b) grabbed her by the throat and pushed her against a wall. PO Simunovic told § 87(2)(b) that if she needed an ambulance, they could get her one. EMTs arrived shortly thereafter and proceeded upstairs. The EMTs were specifically looking for a female with a gash on her finger. § 87(2)(b) asked why EMTs were assisting § 87(2)(b) and no one was rendering aid to her. PO Simunovic asked if she had any physical pain or needed an ambulance and § 87(2)(b) stated that she did not. PO Rozanski saw § 87(2)(b) at the 9th Precinct stationhouse as she was by the front desk. Either the desk sergeant or Sgt. Stromer asked § 87(2)(b) if she needed an ambulance and she stated that she did not need an ambulance, only a tissue to blow her nose. PO Rozanski had no further interaction with § 87(2)(b).

Sgt. Keating, the desk sergeant at the 9th Precinct stationhouse, stated that he asked § 87(2)(b) if she needed medical attention when she was brought into the stationhouse (Board Review 06). Sgt. Keating stated this was standard protocol and not specifically related to any observations of § 87(2)(b)'s physical condition or requests on her part. § 87(2)(b) stated she did not need medical attention but requested a tissue to blow her nose. No officer informed Sgt. Keating that § 87(2)(b) requested medical attention while in the holding area.

Video footage obtained from § 87(2)(b) surveillance cameras showed § 87(2)(b) being escorted to a marked police van (Board Review 07 to 09). The surveillance cameras only capture the exterior of the building and did not capture audio.

9th Precinct Command log records § 87(2)(b)'s physical and mental condition at the time of her arrival at the stationhouse as apparently normal (Board Review 15).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended **Allegations A and B** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 10).
- PO Simunovic has been a member of service for seven years and this is the first CCRB complaint to which he has been a subject.
- PO Seidita has been a member of service for 11 years and has been the subject of three CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(g)
- As of July 13, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 14).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date